TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc*. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 **(NOT N6- Please no reserving/filing of motions in N6)** conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at https://www.occourts.org/media-relations/civil.html, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: Privately-Retained Court Reporter Policy.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: July 2, 2026

#	Case Name	Tentative
2.	**30-2025-01508590** **Alvarado vs. Capati**	**1. Motion for Relief from Waiver of Objections** **2. Order to Show Cause** Defendant Monique Rosario Nilo Capati ("Defendant") moves for an order relieving Defendant from any waiver of objections with respect to her untimely responses to Form Interrogatories, Set One, propounded by Plaintiff Araceli Huizar ("Huizar"). Initially, on October 30, 2025, Huizar served Form Interrogatories (Set One), on Defendant. (Decl. of Means para. 3.) After several extensions, responses were due on December 29, 2025. (*Id*. para. 4-5.) The time to respond expired without Defendant serving responses. (*Id*. para. 6.) Failing to respond within the time limit waives most objections to the interrogatories (and other forms of discovery), including claims of privilege and "work product" protection. [CCP § 2030.290(a); see *Leach v. Sup.Ct. (Markum)* (1980) 111 Cal.App.3d 902, 905-906.] However, the court has statutory power to grant relief from such waiver. [CCP § 2030.290(a)] That is, the party seeking belatedly to assert some objection must show that the party has belatedly served responses "in substantial compliance" with that party's duty to respond under CCP § 2030.210(a). [CCP § 2030.290(a)(1) (emphasis added)] The declarations must establish that the party's failure to serve a timely response resulted from "mistake, inadvertence, or excusable neglect." [CCP § 2030.290(a)(2).] While the Court has broad discretion in this area, not every "excuse" is excusable. [See *Mannino v. Sup.Ct. (Southern Calif. Edison Co.)* (1983) 142 Cal.App.3d 776, 778-779.] In this instance, Yvette Busby, who is a legal assistant with the law firm representing Defendant, declares, "Among my responsibilities are calendaring deadlines when discovery requests are received, along with any extensions that were requested. Due to my inadvertence and oversight, I did not calendar the new agreed upon deadline of December 29, 2025, for Defendant's responses to Plaintiff's discovery requests. Because the deadline was not calendared, no further request for an extension was made before the time to respond expired. This mistake was unintentional and resulted from my oversight." (Decl. of Busby paras. 3-6.) In addition, attorney Means (counsel for Defendant) declares that on January 5, he requested and received an additional extension until January 12 to serve responses; that on January 12 he communicated that responses would bae served shortly; and that responses were served on January 14, 2026. (Decl. of Means, paras. 7-9.) Verifications were served on January 23, 2026. (Id. at para. 11.) Thus, Attorney Means' declaration as well as Yvette Busby's declaration provides a reason for the delay and complies with CCP § 2030.290(a)(2).

		Additionally, the responses are substantially compliant. (Decl. of Means, Exh. G.) Huizar contends that, although missing the agreed upon December 29 deadline may have initially been excusable, Defendant was not diligent in providing responses once the error was discovered. However, as Defendant points out, December 29 fell within the holiday period. Huizar's counsel reached out to Defendant's counsel on December 30 and December 31, but complains that Huizar's counsel did not respond until Monday, January 5. Given the New Years holiday and intervening weekend, it was not unreasonable for Defendant's counsel to respond on January 5. In addition, Defendant's counsel remained in continuous communication with Huizar's counsel until the responses and verifications were served approximately two weeks later. Accordingly, the Motion is **GRANTED**. **Moving party to give notice.**
5.	**30-2024-01442123** **Huy vs. Lake Mission Viejo Association**	**1. Motion-Other** **(Determining December 12, 2025, Transmission did not Constitute Valid Service)** Defendant Park West Landscape Maintenance Inc. ("Park West" or "Defendant") moves for an order finding that plaintiff Nancy Huy's ("Plaintiff") December 12, 2025 transmission of discovery responses did not constitute valid electronic service for purposes of commencing the 45-day period under Code of Civil Procedure sections 2030.300(c) and 2031.310(c) and that Park West's Motions to Compel filed and served on February 2, 2027 are timely. Park West further moves for an order compelling Plaintiff to serve further verified responses without objections to Special Interrogatories, Set One, Nos 19, 20, 23, 24, 27, 28, 34, 35, 37, 38, 41, 42, 43, and 50. Defendant argues that its discovery motions were timely filed because the 45-day period was not triggered on December 12 due to attorney Ed Sipes being left off of the email serving Plaintiff's responses. However, service on only one attorney when a party is represented by multiple attorneys constitutes effective service. (See, *Adaimy v. Ruhl* (2008) 160 Cal.App.4th 583, 588 [holding service on one of the two law firms representing client was sufficient].) Defendant does not dispute that Joshua Watts and Robert Kubler, both of whom appear on the caption of Defendant's written discovery, were served by email with the responses on December 12. Further, Mr. Kubler confirmed receipt of the responses the same day. Defendant contends that Plaintiff failed to its designated electronic service address but provides no evidence that Plaintiff was requested to include Ed Sipes on any service emails prior to December 12. Notably, Mr. Kubler's email in response confirming receipt of the responses on December 12 raised no concerns regarding the absence of Ed Sipes on the email chain. Thus, the Court finds Plaintiff's December 12 service of responses was valid and the deadline for Defendant to file any motions to compel ran from that date. Because the responses were served electronically, Defendant had until January 28, 2026 to file a motion to compel. The motion was not filed until February 2, 2026, five days after the deadline. The 45-day time period within which to make a motion to compel further answers "is mandatory and jurisdictional" and "it renders the court without authority to rule on motions to compel other than to deny them." (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410.) Because Defendant's discovery motions were not timely filed, the Court has no authority to rule on them other than to deny them.

		Defendant alternatively requests relief from the consequences of its untimely filings pursuant to Code of Civil Procedure section 473(b), arguing that the failure to calendar the correct deadline for a motion to compel was a mistake of counsel's calendaring assistant. Defendant contends that the calendaring assistant did not receive Plaintiff's responses until December 18 while reviewing a December 16 email from counsel for co-defendant Lake Mission Viejo Association ("LMVA") and the calendaring assistant calculated the deadline using December 16 as the operative receipt date. The court may relieve a party, "upon any terms as may be just, . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) "'The inexcusable neglect of an attorney is usually not a proper basis for granting the client's motion under section 473.' [Citation.] 'Excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances.'" (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1419.) "Relevant factors in assessing counsel error include: '(1) the nature of the mistake or neglect; and (2) whether counsel was otherwise diligent in investigating and pursuing the claim.'" (*Id*. at p.1423.) "'Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable.'" (*Ibid*.) "'To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.'" (*Ibid*.) Here, the Court finds that Defendant's failure to timely file its motion was not the result of any mistake, inadvertence, surprise, or excusable neglect. Defendant concedes that counsel was served with the responses on December 12. Counsel's failure to ensure that the proper deadline to file a motion to compel was calendared fell below the professional standard of care and cannot constitute excusable neglect. Reasonable and ordinary prudence would have prevented the error. To the extent Defendant is arguing that the untimeliness of its motion was due to the calendaring assistant's mistake of using December 16 as the date responses were served, this is also not excusable. The calendaring assistant's calculation based on the date an email from counsel for LMVA, not Plaintiff, is not reasonable, as clearly it was not LMVA's counsel who served the responses. Further, simply glancing at the proofs of service attached to the responses would have revealed the true date of service. Based on the above, Defendant's motion to find service of the responses defective is **DENIED**. Accordingly, Defendant's motion to compel further responses is also **DENIED** as untimely. **Moving party to give notice.**
6.	**30-2024-01415577** **Mejorado vs. General Motors, LLC**	**1. Motion for Attorney Fees** Plaintiffs Eric Mejorado and Elizabeth Mejorado formerly known as Elizabeth Aguilar ("Plaintiffs") move for an order awarding them attorney fees pursuant to Civil Code section 1794(d), in the total amount of $22,972.00, consisting of $19,972.00 and an additional $3,000.00 to review the opposition, prepare a reply, and attend the hearing against defendant General Motors LLC ("Defendant"). Civil Code section 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." "As the plain wording of section 1794,

subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of time spent and the amount charged.' " (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247.) "Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then 'ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.' " (*Ibid*.)

This action was filed in July 2024. The parties engaged in written discovery, meet and confers, and discovery motion practice. No depositions were taken. Counsel billed a total of 45.40 hours over the span of the litigation.

Nancy Zhang is a former partner who was admitted to practice in 2013 and billed at an hourly rate of $525-540. Joseph Liu is a senior associate who was admitted to practice in 2008 and billed at an hourly rate of $500-515. Richard Ruiz is a paralegal with five years of experience in the automotive industry who billed at an hourly rate of $210-215.

Defendant does not object to these hourly rates.

Based on the Court's experience with Song-Beverly actions and knowledge of the prevailing rates for similar cases in Orange County, the Court finds the rates to be reasonable.

As to the amount of time expended, the Court agrees with Defendant that the time spent drafting Plaintiffs' cost memorandum and time requested for preparing a reply and attending the hearing on the fee motion is excessive. The Court finds that the time spent drafting the cost memorandum should be reduced from 0.60 hours to 0.10 hours (a reduction of $262.50) and the amount of fees requested for the reply and hearing should be reduced from $3,000.00 to $2,060.00 (with four hours of associate time being a reasonable amount of time incurred for the reply and hearing). This equals a total of $1,202.50 in reductions.

Defendant argues all prelitigation time before the Complaint was drafted and filed should be stricken as unrecoverable overhead. However, section 1794(d) expressly provides that a prevailing buyer may recover attorney's fees that were reasonably incurred "in connection with the commencement and prosecution of such action." The prelitigation time spent on intake of the case was incurred in connection with the commencement of this action and is therefore recoverable.

Defendant argues that time billed by counsel's paralegal, Richard Ruiz, should be stricken because the work performed is clerical in nature. The Court agrees that entries for uploading documents to counsel's filing system should be stricken, as this is a purely secretarial task. While it is impossible to determine the exact number of hours billed for this task, as many of the entries are block-billed, a reasonable estimate of the time spent for uploading documents to the file is 1 hour of Mr. Ruiz's time, which reflects a reduction of $210.00. The Court finds the remaining tasks billed by Mr. Ruiz to be reasonably incurred and recoverable.

In light of the above, Plaintiffs' Motion for Attorney Fees is **GRANTED** in the amount of **$21,559.50.**

Moving party to give notice.

7.	**30-2023-01319359** **Won vs. American Honda Motor Co., Inc**	**1. Motion for Attorney Fees** Plaintiff Jane Won ("Plaintiff") moves for $22,976.42 in attorney fees and costs, which breaks down to (1) $14,042.00 in attorney fees for Strategic Legal Practices, APC ("SLP"); (2) a 1.35 multiplier enhancement on the attorney fees (or $4,914.74; (3) $2,019.72 in costs and expenses for SLP; and (4) an additional $2,000.00 for Plaintiffs' counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion. Defendant American Honda Motor Co., Inc. ("Defendant") opposed the motion, argument that Plaintiff's motion should be denied as untimely. Alternatively, Defendant argues that the attorney fees and costs should both be reduced. First, the Court finds that it has retained jurisdiction to determine the attorney fees and costs pursuant to Code of Civil Procedure section 664.6 and the settlement agreement between the parties. (See Code Civ. Proc., § 664.6; see e.g., *Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 505; ROAs 112, 115, and 133, Ex. 1, Defendant American Honda Motor Co., Inc.'s Statutory Offer to Compromise, ¶ 3.) As such, the Court finds that the timing requirements discussed in the opposition do not apply and the Court has jurisdiction to hear this motion pursuant to Code of Civil Procedure section 664.6. Moving to the merits of the motion, the Song-Beverly Consumer Warranty Act provides remedies for consumers that have purchased, among other consumer goods, new vehicles. Remedies include the right to recover "damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).) Remedies include those discussed in Code of Civil Procedure section 1794(d). Code of Civil Procedure section 1794(d) states: > "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "A prevailing buyer has the burden of showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1158; see also *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34-35; *Levy v. Toyota Motor Sales, U.S.A., Inc*. (1992) 4 Cal.App.4th 807, 816.) "Determining a reasonable attorney fee award in Song-Beverly Act cases ordinarily begins with the 'lodestar,' [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate." (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [internal quotations omitted]; *Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682, 691 ["To determine a reasonable attorney fee award, the trial court applies the lodestar method."].) "The lodestar may 'then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.' " (*Id*. [citing *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36, 241 Cal.Rptr.3d 263 (*Warren*)].) "The lodestar method 'anchors the trial court's analysis to an objective determination of the value of the attorney's services,' and thus ensures the amount awarded is not arbitrary." (*Id.*, 1157–1158.)

"The Song-Beverly Act's attorney fee provision requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable." (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1158 [internal quotations omitted].) "These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved." (*Ibid*.; see also *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34, *as modified* (Oct. 11, 2019); *Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682, 691 ["These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved."].) "If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (*Ibid*.; see also *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 36, *as modified* (Oct. 11, 2019); *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

"The reasonable hourly rate is that prevailing in the community for similar work." (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) "The relevant "community" is generally based on where the services are rendered, i.e., where the court is located." (*Ibid*.) "Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County." (*Ibid*.)

In considering whether to apply a multiplier (positive or negative) the court should conder the following and other relevant circumstances: complexity of the case, procedural demands, delay by the opposing party, and litigation tactics used by the opposing party. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

Notably, "it is inappropriate and an abuse of a trial court's discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff's damages or recovery in a Song-Beverly Act action." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35, *as modified* (Oct. 11, 2019).)

Here, the parties agreed in their Settlement Agreement that Plaintiffs are the prevailing party for purposes of attorney fees and costs.

Pursuant to the terms of the signed 998 offer, the Court **DENIES** Plaintiff's request for the "additional $2,000.00" sought "for Plaintiffs' counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion." The 998 offer signed by Plaintiff on 03/14/2024 expressly states that "Plaintiff shall not recover post-offer costs, including attorneys' fees from the date of this Statutory Offer."

In addition, the Court **DENIES** Plaintiff's request for the "a 1.35 multiplier enhancement on the attorney fees (or $4,914.74)." The Court finds that the circumstances of this case were not so complex or procedurally demanding such that a lodestar enhancement is appropriate. The Court also finds that Defendant did not delay the case or use litigation tactics that would justify the application of an enhancement/multiplier.

The Court **GRANTS** the motion for attorney fees in the amount of $10,609. The Court finds that Plaintiff is not entitled to fees related to the motion to stay and those incurred after Plaintiff signed the 998 offer on 03/14/2026. Moreover, the Court slightly reduced the hourly rates of Vaziri, Sanam (2023) and Carvalho, Tionna (2024) by $15 each based on the prevailing

		reasonable hourly rate in Orange County and their experience. Otherwise, the Court finds that Plaintiffs have carried their burden to establish that the attorney fees sought are reasonable. For the same reasons discussed above, the Court reduces the costs by $483.20. The Court is not persuaded the court reporter fees should be stricken and is also not persuaded that the discovery motion costs were unnecessary since the motions were filed before the motion to compel arbitration was filed and before the court ordered a stay. Given the above, the Court will award $1,536.52 in costs Given the above, the **motion for attorney fees is GRANTED** in the amount of **$10,609**. The motion is also **GRANTED** as to Plaintiff's request for **$1,536.52 in costs**. The motion is **DENIED** as to the other fees requested. Plaintiff's request for judicial notice of other court orders on motions for attorney fees is **DENIED**. Such orders are not binding on the Court. A court may deny a request for judicial notice on the ground that the material is not relevant to the determination of the issues. (*State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 442.) **Plaintiff to give notice.**
9.	**30-2024-01373470** **Rojas vs. Pickens**	**1. Motion for Order to Stay Proceedings** Plaintiffs Larry Rojas and Yesenia Diaz ("Plaintiffs") move for an order imposing a stay of all proceedings in this action pending resolution of the related criminal matter against defendant Matthew Pickens. " 'The Constitution does not require a stay of civil proceedings pending the outcome of criminal proceedings. [Citation.] A court, however, has the discretion to stay civil proceedings, postpone civil discovery, or impose protective orders and conditions " ' "when the interests of justice seem [ ] to require such action, sometimes at the request of the prosecution, . . . sometimes at the request of the defense[.]" ' " ' [Citations.]" (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 886.) The factors to be considered in deciding whether to impose a stay of civil proceedings in the face of parallel criminal proceedings are: "(1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation." (*Avant!*, 79 Cal.App.4th at p. 887, citing *Keating v. Office of Thrift Supervision* (9th Cir. 1995) 45 F.3d 322, 324-325.) Plaintiffs argue that a stay pending resolution of the criminal action against Matthew Pickens is warranted because Matthew Pickens's Fifth Amendment rights are implicated here and a stay would avoid numerous disputes related to his potential invocation of the privilege. Plaintiffs contend that the *Keating* factors favor a stay, a stay will not burden defendants, and a stay would further the convenience of the Court because if the criminal case against Matthew Pickens results in a conviction, liability against him in this civil action need not again be proven. Here, Plaintiffs allege that Matthew Pickens caused Larry Rojas to be shot by a firearm with the intent to harm him. There is a parallel criminal case pending against Matthew Pickens related to

the incident underlying Plaintiffs' action. This civil action clearly implicates Matthew Pickens's Fifth Amendment privilege while the criminal case remains pending.

The Court finds that the *Keating* factors favor a stay here. The first factor relates to Plaintiffs' interests in proceeding with the litigation expeditiously, but it is Plaintiffs requesting the stay in this case. Because Plaintiffs have no objection to the delay that will be caused by a stay, the first factor weighs in favor of a stay.

The second factor relates to the burden any particular aspect of the proceedings would place on Defendants. Defendants Mark and Annmarie Pickens argue that a stay would prejudice their interest in a timely resolution of this action because the requested stay is open-ended and for an indeterminate period. However, beyond pointing to the fact that it is impossible to predict when the criminal case will come to a close so that the civil action may resume, Mark and Annmarie point to no real prejudice they might suffer if a stay is imposed. Thus, this second factor also weighs in favor of a stay.

The third factor, convenience of the Court and efficient use of judicial resources, supports a stay, as a stay until the criminal case is resolved would avoid further disputes regarding the Fifth Amendment privilege and whether have full access to all documents, information, and testimony necessary to their advancement of this action.

The remaining factors are neutral.

Mark and Annmarie argue that a stay against them, when they do not face any criminal prosecution, is unnecessary. However, the claims against them by Plaintiffs are that they negligently allowed Matthew Pickens, their son, to have access to the firearm used in the underlying incident. These claims are intertwined with the criminal and civil claims against Matthew Pickens. Further, as Plaintiffs have shown, Plaintiffs have been denied access to documents and information regarding the weapon used to shoot Larry Rojas and the weapons seized from Mark and Annmarie's home because the criminal investigation/prosecution of Matthew Pickens remains pending. These documents and information go directly to the issue of Mark and Annmarie's liability. Under these circumstances, a stay is warranted.

In light of the above**, Motion for Stay is GRANTED**. Accordingly, the pending hearings in this matter are ordered **VACATED**.

A **Status Conference re: Stay** is set for **November 5, 2026 at 9:00 a.m. in C34**.

Moving party to give notice.

10.	**30-2025-01500072** **Salmeron vs. Audicus, Inc**	**1. Motion to Compel Answers to Form Interrogatories** **2. Motion to Compel Answers to Form Interrogatories** **3. Motion to Compel Answers to Form Interrogatories** **4. Motion to Compel Answers to Form Interrogatories** **5. Motion to Compel Answers to Form Interrogatories** **6. Motion to Compel Answers to Form Interrogatories** **7. Motion to Compel Answers to Form Interrogatories** **8. Motion to Compel Answers to Form Interrogatories** **9. Motion to Compel Arbitration** **10. Motion to Deem Facts Admitted** **11. Motion to Deem Facts Admitted** **12. Order to Show Cause re: Appointment of Discovery Referee** Defendants Audicus, Inc. and Andre Sequin ("Defendants") move to compel arbitration. Plaintiff Maria Medrano Salmeron ("Plaintiff") opposes the motion. In compelling arbitration, "the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.'" (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165; Cal. Rules of Court, rule 3.1330.) "The moving party can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party's signature." (*Ibid*. [internal citations omitted].) Importantly, "[f]or this step, 'it is not necessary to follow the normal procedures of document authentication.'" (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [citing *Condee v. Longwood Management Corp*. (2001) 88 Cal.App.4th 215, 218].) In fact, the moving party can meet its burden of establishing "evidence of a written agreement to arbitrate the controversy" by (1) "attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature" or (2) "setting forth the agreement's provisions in the motion." (*Ibid*.) "If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) "If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) "The opposing party can do this in several ways." (*Ibid*.) For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (*Ibid*. [citing *Bannister*, *supra*, 64 Cal.App.5th at p. 546, 279 Cal.Rptr.3d 112 [never saw or signed agreement]; *Fabian v. Renovate America, Inc*. (2019) 42 Cal.App.5th 1062, 1065, 255 Cal.Rptr.3d 695 (*Fabian*) [never given or signed contract]; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1054, 201 Cal.Rptr.3d 318 (*Espejo*) [did not recall seeing or signing document]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, 181 Cal.Rptr.3d 781 (*Ruiz*) [did not recall signing agreement].) "If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties."

(*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) "The burden of proving the agreement by a preponderance of the evidence remains with the moving party." (*Id*., 165–166.)

A. Plaintiff's Signature is sufficiently Authenticated

Here, the Court finds that Defendant has sufficiently authenticated Plaintiff's signature on the Worksite Employee Acknowledgment and Arbitration Clause contained therein pursuant to the holdings in *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843–844, *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062, and the other related case law cited by the parties.

For example, Christian Sjulsen, who is the "Head of Consumer" and testified that he is "familiar with Audicus' operations, and Plaintiff's employment with Audicus, including Audicus' onboarding practices with Justworks." (ROA 147, Declaration of Christian Sjulsen, ¶ 4.) Sjulsen also testified that in his position, he has "he access to personnel records, which are maintained in the ordinary course of business. I reviewed Plaintiff's personnel file, as well as the Arbitration Agreement signed by Plaintiff on or about July 11, 2023 with Justworks." (ROA 147, Declaration of Christian Sjulsen, ¶ 7.)

Then, Kyle Johnson testified the process pursuant to which Plaintiff would sign the agreement at issue. (ROA 148, Declaration of Kyle Johnson, ¶¶ 2- 6.) Johnson stated that each employee creates an individual employee account with JustWorks. JustWorks is a third party hired to conduct HR procedures, such as onboarding and tax paperwork. Once an employee creates an individual employee account with JustWorks, the employee is prompted to sign the Employee Worksite Acknowledgement Agreement. When the employee signs documents on JustWorks, their name, the date, and the IP address at which the signature was made is recorded on JustWorks and is stored with Just Works.

JustWorks also contains the employee's wage statements and personnel file documents, including tax documents (such as a W-2), benefit plan documents, and others. Importantly, all of the documents that Plaintiff signed or that pertain to Plaintiff are stored on her JustWorks account and are accessible to her at her discretion. Given the above, the Court finds that the electronic signature has been sufficiently authenticated such that the electronic signature was an act of Plaintiff.

B. The Worksite Employee Acknowledgment and Arbitration Clause contained therein supersedes the Offer of Employment

Next, the Court finds that the Worksite Employee Acknowledgment and Arbitration Clause contained therein supersedes the Offer of Employment and therefore, contrary to Plaintiff's argument, the Offer of Employment does not govern. The Arbitration Clause contained in the Worksite Employee Acknowledgment expressly states

> "This is the entire agreement between you, on the one hand, and Worksite Employer and/or Justworks, on the other hand, regarding dispute resolution, and this arbitration agreement supersedes any and all prior agreements regarding these issues. Any agreement contrary to the foregoing must be entered into, in writing, signed by you, the authorized representative of Worksite Employer and the CEO of Justworks."

This document was signed by Plaintiff on July 11, 2023 at 12:59 p.m. Thus, the Acknowledgment with the Arbitration Clause was signed after Plaintiff signed the offer of employment letter and supersedes any agreement to resolve disputes in the Court as Plaintiff argues. There is no ambiguity in the term that expressly states that the Worksite Employee Acknowledgment supersedes any prior agreements.

C. Plaintiff Assented to the Arbitration Clause

The Court finds that Plaintiff assented to the Arbitration Agreement Clause.

"Under basic principles of California contract law, '[m]utual assent, or consent, of the parties 'is essential to the existence of a contract' (Civ. Code, § 1550; see also Civ. Code, § 1565), and '[c]onsent is not mutual, unless the parties all agree upon the same thing in the same sense' (Civ. Code, § 1580).'" (*Herzog v. Superior Court (*2024) 101 Cal.App.5th 1280, 1293–1294, *review denied (Aug. 28, 2024)*.)

" 'Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.' " (*Herzog v. Superior Court (*2024) 101 Cal.App.5th 1280, 1293–1294, *review denied (Aug. 28, 20240*.) "The parties' outward manifestations must show that the parties all agreed 'upon the same thing in the same sense.'" (*Ibid*.) "If there is no evidence establishing a manifestation of assent to the 'same thing' by both parties, then there is no mutual consent to contract and no contract formation.' " (*Ibid.*) "Further, California law is clear—an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he [or she] was unaware, contained in a document whose contractual nature is not obvious." (*Id*. [internal quotations omitted].)

"This principle of knowing consent applies with particular force to provisions for arbitration' [citation], including arbitration' provisions contained in contracts purportedly formed over the internet." (*Herzog v. Superior Court (*2024) 101 Cal.App.5th 1280, 1293–1294, *review denied (Aug. 28, 2024)* [internal quotations omitted].) "In the context of an internet transaction, in the absence of actual notice, a manifestation of assent may be inferred from the consumer's actions on the website—including, for example, checking boxes and clicking buttons—but any such action must indicate the parties' assent to the *same thing*, which occurs only when the website puts the consumer on constructive notice of the contractual terms." (*Ibid*.) "Thus, in order to establish mutual assent for the valid formation of an internet contract, a provider must first establish the contractual terms were presented to the consumer in a manner that made it apparent the consumer was assenting *to those very terms* when checking a box or clicking on a button." (*Ibid*.) "And the full context of any transaction is critical to determining whether any particular notice is sufficient to put a consumer on inquiry notice of contractual terms contained on a separate, hyperlinked page." (*Ibid.*)

After reviewing the supplemental declarations, the Court finds that Plaintiff assented to the Arbitration Clause. Defendant established that the arbitration terms were presented to Plaintiff such that it was apparent that Plaintiff was assenting to the Arbitration Clause. In particular, Defendant provided evidence via the declaration of Kyle Johnson the following:

> "To complete each document, including the Acknowledgment, the employee must click on the listed document from the onboarding dashboard, which opens the document in a dedicated viewer within the platform. The system does not allow the employee to sign or

		complete the document from the dashboard view alone; the employee must first open the document itself." (ROA, Declaration of Kyle Johnson, ¶ 7.) This testimony, along with the other evidence Defendant submitted, establishes the requisite notice to find that Plaintiff assented to the Arbitration Clause. **D. The Arbitration Clause is Enforceable pursuant to *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83** The Court finds that the Arbitration Clause is binding and enforceable. The Court finds that the Arbitration Clause meets the requirements set forth in *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 102, which holds that an <u>employmen</u>t arbitration agreement is lawful and therefore enforceable if it "(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 102.) Given the above, the Motion to Compel Arbitration is **GRANTED** and the action is **STAYED**. The Court finds that the declaration of Kyle Johnson and the testimony contain therein are admissible. Plaintiff's objections to such testimony is **OVERRULED**. The Court sets an **ADR Review hearing** for **<u>February 11, 2027 at 10:30 am in C34</u>**. The **<u>Discovery Motions</u>** scheduled are **OFF CALENDAR AS MOOT** given the Court's order compelling arbitration. **Moving party to give notice.**
11.	**30-2024-01390718** **Chavez vs. General Motors, LLC**	**1. Motion for Summary Judgment and/or Adjudication** **2. Motion for Summary Judgment and/or Adjudication** Defendant General Motors LLC ("Defendant") filed a motion for summary judgment as to all five causes of action alleged in the Complaint, which includes the: (1) first cause of action for violation of Civil Code section 1793.2(d), (2) second cause of action for violation of Civil Code section 1793.2(b), (3) third cause of action for violation of Civil Code section 1793.2(a)(3), (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5, and (5) fifth cause of action for violation of the Magnuson-Moss Warranty Act. Plaintiff Ernesto Everardo Chavez ("Plaintiff") opposed the motion. The Motion is **CONTINUED TO August 20, 2026 at 1:30pm**. ***The Court is unable to read the Exhibit A to the motion for summary judgment***, which is the Dealer's Reassignment of Title and Retail Purchase Agreement showing the sale of a used model 2020 Chevrolet Silverado 1500, VIN: 3GCPYBEH0LG401310 (the

		"Silverado"), by Vroom, located in Texas (as Seller-Creditor) to Ernesto Everrado Chavez (as Buyer) on January 22, 2021. **Defendant is ORDERED to file a more legible copy of this agreement no later than 9 court days before the continued hearing.** No further briefing. **Defendant to give notice.**